

TENTATIVE RULING

Jason Lloyd Williams

v.

Aaron Robert Erwin

25CV005969

Defendant's Motion to Compel Plaintiff's Response to Form Interrogatory No. 17.1

Hearing Date: August 14, 2026

On March 7, 2026, Defendant Aaron Robert Erwin ("Defendant") served Form Interrogatories on Plaintiff Jason Lloyd Williams ("Plaintiff"). Plaintiff did not serve his responses to this and other discovery requests until July 30, which is 90 days past the April 30 deadline and 38 days after Defendant filed this motion.¹ Further, Plaintiff did not provide a substantive response to Form Interrogatory No. 17.1. Therefore, the motion and Defendant's request for monetary sanctions are **GRANTED**.

Legal Standard.

"Unless otherwise limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." [Code Civ. Proc. § 2017.010.]

A party serving interrogatories may file a motion for an order compelling further responses if that party believes an answer is, among other things, evasive or incomplete, or an objection lacks merit or is too broad. [Code Civ. Proc. § 2030.300, subd. (a).] If a timely motion to compel is filed, the responding party has the burden to justify any objection or failure to answer the interrogatories fully. [*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.]

The Court "shall" require the party receiving discovery to pay the propounding party's reasonable expenses, such as attorney fees, for enforcing discovery unless it finds that the sanctioned party acted with "substantial justification" or that other circumstances make the sanction unjust. [Code Civ. Proc. § 2030.300, subd. (d).] The moving papers must include a request for sanctions and (1) list all persons, parties, and attorneys against whom sanctions are being sought; (2) specify the type of sanction sought; (3) specify the amount sought if monetary sanctions are involved; and (4) cite the authority for such sanctions. [Code Civ. Proc. § 2023.040.] When monetary sanctions are sought, the notice must be accompanied by a

¹ Defendant originally moved to compel Plaintiff to respond to his Form Interrogatories and Requests for Production, and to deem that Plaintiff admitted to the entirety of his Requests for Admissions. Defendant's supplemental filing on August 6, 2026, narrowed the issues to Plaintiff's responses to Form Interrogatories.

declaration “setting forth facts supporting the amount” of the monetary sanction requested. [*Ibid.*]

Discussion.

Preliminarily, Plaintiff verified his responses to Defendant’s Form Interrogatories on “July 17 2026,” rather than “July 17, 2016.” [*Compare* Supp. Smith Decl. at ¶ 6 *with* Exh. E to Supp. Smith Decl. at 4 (sic).] Therefore, it is not necessary for Plaintiff to submit another verification for his initial responses to Form Interrogatories.

Otherwise, Defendant’s motion is **GRANTED**, and Plaintiff must serve a verified, substantive, and objection-free further response to Form Interrogatory No. 17.1 within 15 days from the Notice of Entry of the signed order. In his response to Defendant’s Requests for Admissions, Plaintiff partially admitted to Request No. 1 and denied Request Nos. 2-8, 10-13, and 16-20. For each of those responses, Form Interrogatory No. 17.1 requires Plaintiff to (1) state all facts upon which he bases his response, (2) state the names and contact information of all persons who know those facts, (3) identify all documents and other tangible things that support his response, and (4) state the names and contact information of all persons who have such documents and tangible things. For example, Plaintiff may format his response to Form Interrogatory No. 17.1 as follows:

Form Interrogatory No. 17.1

- (a) Request for Admission No. 1
- (b) [State the facts upon which your response to (a) is based.]
- (c) [State the names and contact information of all persons who know the facts in (b)]
- (d) [Identify the documents and other tangible things that support your response to (a), and the names and contact information of all persons who have such documents].

- (a) Request for Admission No. 2
- (b)-(d) See above.

- (a) Request for Admission No. 3
- (b)-(d) See above.

Repeat for each admission that was either denied or partially admitted.

Sanctions Request.

Defendant’s request for monetary sanctions totaling \$2,250 is **GRANTED**. Plaintiff did not oppose the motion and did not act with substantial justification, especially when he chose to serve his responses after a motion was filed. Plaintiff has not shown that other circumstances exist that would make the imposition of monetary sanctions unjust. Defense counsel’s \$450 hourly rate and the four hours he spent to file and draft the motion are reasonable. [Smith Decl. at ¶¶ 14-16.] Therefore, the Court awards Defendant \$2,250 in reasonable attorney’s fees.

Conclusion.

Defendant's motion to compel is **GRANTED**. Plaintiff has 15 days from the Notice of Entry of the signed order to serve a complete, verified, and objection-free response to Form Interrogatory No. 17.1.

Defendant's request for sanctions is **GRANTED**. Plaintiff shall pay a total of \$2,250 in reasonable sanctions, payable to the Law Office of Nicholas W. Smith within 30 days of the Notice of Entry of the signed Order.

Defendant shall prepare the Proposed Order consistent with this tentative ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.